

...our hands and seals this 1st day of January, 1978.

Carl S. Conlee
CARL S. CONLEE, s.k.a. C.S. CONLEE

Lillian T. Conlee
LILLIAN T. CONLEE, his wife

STATE OF NEW MEXICO)
COUNTY OF DONA ANA) ss.

The foregoing instrument was acknowledged before me
this 1st day of January, 1978, by Carl S. Conlee, s.k.a.
C. S. Conlee and Lillian T. Conlee, his wife.

E. Smith
Notary Public

My Commission Expires:
March 21, 1981

NOTARY SEAL

DONA ANA COUNTY CLERK
JAN 3 1978 3 PM 3 38

State of N. Mex., Co. of Dona Ana
RECEPTION NO 20227 Hereby
certify that this instrument was filed
for record and duly recorded on:

JAN 3 1978

at 3:38 o'clock P.M. on Jan 3
Book 246 Page 157 of the
records of said County Clerk
DELIA GARCIA BARNCASTLE, Clerk
BY: Martha J. [unclear] Deputy



436

Burns
P.O. Drawer 0
City

between this tract and the tract of J. V. Buent; thence North 51° 36' East 130.5 feet along the line between this tract and the tract of J. V. Buent to a point for the Northeast corner of this tract; thence South 40° 15' East for the most part along a fence at 27.6 feet a stake on the top of the South bank of the Fort Drain, and at 227.6 feet a stake in the fence and on a sand hill; thence South 44° 10' East 1135.1 feet along a fence between this tract and tract 711; thence South 37° 55' East 103.6 feet along a fence to the place of beginning; designated as Tract 1418, Section 30, Township 23 South, Range 2 East, containing in all 33.82 acres of land, more or less according to the Government Survey thereof;

EXCEPT a tract of land lying and situate in Dona Ana County, New Mexico and in the NW 1/4 of Section 30, Township 23 South, Range 2 East of the New Mexico Principal Meridian, Bureau of Reclamation Survey; being also within the Mesilla Civil Colony Grant and tract numbered 1418 as shown on Dona Ana County, New Mexico Plat Book, more particularly described as follows:

Beginning at a point the most westerly corner of the land above described and from which point the Northwest corner Section 30, Twp. 23 S., R 2E., N.M.P.M., bears North 15° 31' 45" West 2320.2 feet; thence along the northwesterly property line of the land above described, North 31° 42' East 569.1 feet, North 38° 01' East, 331.3 feet, North 45° 15' East, 139.9 feet, and North 51° 35' East 132.7 feet to a point, the most northerly corner of the land above described, from which point the North quarter corner Section 30, Twp. 23 S., R 2 East, N.M.P.M., bears North 45° 01' 40" East, 1853.8 feet; thence South 39° 45' East, along the northeasterly property line of the above described land, 54.0 feet; thence South 51° 17' West 157.5 feet; thence to the left along a curve having a radius of 522.96 feet, a distance, on the arc of 172.5 feet; thence South 32° 23' West 690.9 feet; thence to the right along a curve having a radius of 622.96 feet, a distance, on the arc, of 155.5 feet to a point on the southwesterly property line of the land above described, the tangent to the curve at said point having a bearing of South 46° 41' West; thence North 37° 47' West, along said southwesterly property line 57.0 feet to the place of beginning. Said tract containing 1.8 acres, more or less.

EXCEPTING all gold, silver and quick silver in and under said land, as reserved in patents (being the same property described in that certain Corporation Special Warranty Deed dated January 27, 1941 from The Federal Land Bank of Wichita, Wichita, Kansas, to C. S. Conlee, which deed was filed for record with the County Clerk of Dona Ana County, New Mexico on March 28, 1941 at 10:35 o'clock A.M., and duly recorded in Book 100 at Page 429 of the Deed Records of said County);

with warranty covenants.

2/35

**WARRANTY DEED
(By Gift)**

CARL S. CONLEY, a.k.a. C. S. CONLEY, and LILLIAN T. CONLEY, his wife, in consideration of love and affection, grant to CAROL ANN WALSH and EDWARD A. WALSH, husband and wife, whose address is 6766 Gale Drive, El Paso, Texas 79918 (receiving as tenants in common and not as joint tenants with rights of survivorship an undivided 1/3 of the hereinafter described real estate) to MARY ALICE DROST and JOHN DROST, husband and wife, whose address is 1130 Pine Avenue, Chico, California 95926 (receiving as tenants in common and not as joint tenants with rights of survivorship an undivided 1/3 of the hereinafter described real estate) and to CARL S. CONLEY, JR. and CHARLENE CONLEY, husband and wife, whose address is 1040 Balmain Drive, Las Cruces, New Mexico 88001 (receiving as tenants in common and not as joint tenants with rights of survivorship an undivided 1/3 of the hereinafter described real estate) the following described real estate in Dona Ana County, New Mexico:

Tract 1: A tract of land situate in Dona Ana County, New Mexico, and in the Mesilla Civil Colony Grant, and in Section 10, Township 21 South, Range 2 East of the Surveys of the U. S. Reclamation Service and being a part of Tract 712 of the plats of Dona Ana County, and more particularly described as follows, to-wit:

Beginning at a stake at a fence corner and at the south side of the Gilliam Lateral, and for the Southeast corner of this tract, and identical with the Southwest corner of Tract 711, whence a U.S.R.S. concrete monument bears northerly and 1 foot distant; thence South 60° 54' West, 274.2 feet for the most part along a fence, to a stake on the South side of the Gilliam Lateral, thence South 49° 57' West 100.1 feet to a stake on the North side of the Gilliam Lateral, whence Picacho bears North 58° 16' West, Organ Peak bears North 75° 27' East, Mt. Franklin bears South 12° 56' East and the East cross on the Catholic Church at Mesilla bears South 70° 51' West; thence South 61° 08' West 902.4 feet along a fence on the South line of this tract and the North line of a tract of C. T. Turney, to a stake at a fence corner and for the Southwest corner of this tract; thence North 17° 43' West along a fence at 900 feet a stake on top of the South spoil bank of the Park Drain Ditch, and at 950.6 feet a point in the Park Drain and on the south line of a tract of Dr. L. Hines and for the Northwest corner of this tract; thence North 31° 41' East 566.5 feet along the line between this tract and the tract of Dr. L. Hines to a point in the Park Drain and at a former fence corner, and identical with the Southeast corner of the tract of Dr. L. Hines, and identical with the Southwest corner of a tract formerly pertaining to J. W. Swank, whence a fence bears North 44° 37' West 944 feet to a fence corner, and whence a point in the center of a bridge over the Park Drain bears South 44° 37' East 30.8 feet distant; thence North 37° 58' East 331.3 feet along the line between this tract and the tract of J. W. Swank; thence North 45° 10' East 139.9 feet along the line